

underinsurance risk, and the maintenance of a distribution system with known defects. Those allegations do not describe conduct that is legally mandated. They describe the manner in which Great American allegedly operated within the permitted structure. These paragraphs are not false, irrelevant, or improper. Court finds no basis to strike these paragraphs under CCP § 436. The Motion to Strike is **DENIED** as to Paragraphs 272-274.

Great American's Motion to Strike is granted in part and denied in part as detailed above. Great American is directed to submit a new proposed order consistent with this ruling. Plaintiff will have 20 days' leave to file a Second Amended Complaint from notice of entry of order.

BUTLER, III VS. SHOEMAKER
CASE NUMBER: 25CV-0208353

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 30, 2026 to Plaintiff John Butler III and counsel, Law Office of Natalie R. Ludwig for failure to timely serve Defendant as required by CRC 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on August 4, 2025. Plaintiff filed a declaration in anticipation of the May 4, 2026 Mandatory Settlement Conference. On June 11, 2026, Plaintiff filed an additional declaration, but the information in that declaration shows only minimal effort toward service of Defendant, and provides no information on dates that the efforts were made. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court intends to impose monetary sanctions in the amount of \$250.**

CAPITAL ONE, N.A. VS. FORTNER
CASE NUMBER: 25CVG-00896

Tentative Ruling on Discovery Motions: Plaintiff Nicole D. Fortner filed the following motions on May 18, 2026:

- Motion for Order Deeming Matters Admitted
- Motion for Order Compelling Initial Responses to Form Interrogatories, Set One and Special Interrogatories, Set One
- Motion for Order Compelling Plaintiff's Initial Responses to Demand for Production of Documents, Set One
- Motion for Order Precluding Evidence at Trial for Failure to Provide Sufficient Bill of Particulars

Each motion has a June 15, 2026 hearing date and requests to reopen discovery. On June 10, 2026, Defendant tardily filed proofs of service as to all motions. Plaintiff filed oppositions to two of the motions on June 11, 2026. Based upon the late filings by both parties, the Court intends on continuing the hearing on the discovery motions and vacating the currently set trial. Defendant's four motions are continued to **Monday, July 13, 2026 at 8:30 am in Department 63**. The trial date of June 29, 2026, is **VACATED**. The matter will be calendared for trial resetting for **Monday, July 13, 2026, at 9:00 am in Department 63**.

HALE VS. PERRIN CONSTRUCTION, INC.
CASE NUMBER: 25CV-0208539

Tentative Ruling on Motion for Preliminary Approval of Class Action and PAGA Settlement: Plaintiff Shawn Hale brought this wage and hour class action and Private Attorneys General Act ("PAGA") matter against Defendant Perrin Construction, Inc. The First Amended Complaint was filed on March 10, 2026. The parties have settled the matter for a total of \$578,000 and seek preliminary approval by the Court.

The law favors the settlement of lawsuits, particularly in complex litigation, where they save time and resources. *Neary v. Regents of the University of California* (1992) 3 Cal. 4th 273, 277-281 (superseded by statute on other